

贝特曼·越港资本 V 期



BTM 贝特曼咨询
专业守护 移路通达

CROSSHARBOR
CAPITAL PARTNERS®



MOONLIGHT BASIN

THIS INFORMATION PROMOTES AN IMMIGRATION PROGRAM AND IS DIRECTED TO INDIVIDUALS RESIDING IN CHINA. THIS INFORMATION DOES NOT CONSTITUTE AN OFFER TO SELL OR A SOLICITATION OF AN OFFER TO BUY IN THE UNITED STATES OR ANY OTHER JURISDICTION IN WHICH SUCH OFFER OR SOLICITATION IS NOT LAWFUL OR IN WHICH THE PERSON MAKING SUCH OFFER OR SOLICITATION IS NOT QUALIFIED TO DO SO. INTERESTS IN SUCH INVESTMENTS ARE OFFERED SEPARATELY BY THE PLACEMENT AGENTS FOR SUCH INVESTMENTS. ALL REFERENCES TO LEGAL AND/OR INVESTMENT-RELATED MATERIAL ARE EXCERPTS AND ARE INTENDED TO PROVIDE GENERAL INFORMATION AND DO NOT CONSTITUTE LEGAL, FINANCIAL OR INVESTMENT ADVICE. POTENTIAL APPLICANTS ARE ADVISED TO THOROUGHLY REVIEW ALL APPLICABLE DOCUMENTS AND OBTAIN PROFESSIONAL ADVICE FROM A LICENSED PROFESSIONAL TO FULLY UNDERSTAND APPLICABLE LAWS AND ASSOCIATED RISK FACTORS.

此信息旨在宣传移民计划，并且面向居住在中国的个人。此信息不构成在美国或在任何其他此类要约或要约邀请不合法或提出此类要约或要约邀请的人员无合格资质的司法管辖区的销售要约或购买要约邀请。此类投资的权益由此类投资的配售代理单独提供。所有关于法律和 / 或投资相关材料的引用均为摘录，旨在提供一般信息，不构成法律、财务或投资建议。建议潜在申请人全面审查所有适用文件，并从持有许可的专业人士那里获得专业建议，以全面了解适用法律和相关风险因素。

目录

EB-5 改革与诚信法案

1、新法 EB-5 预留签证	5
2、乡村项目优先审理	6
3、双递交条款	7

区域中心批准函

1、区域中心批准函	8
2、TEA 乡村项目证明	9
3、I-956F 收据	10
4、越港资本基本信息	11

开发商与项目概况

1、越港资本创始人 Sam Byrne 访谈	12
2、月光谷俱乐部项目产权法律文件	13
3、月光谷俱乐部项目开发更新政府批准文件	14
4、项目基本情况	15
5、项目建筑工期	16
6、就业岗位创造	17
7、项目开发成本	18
8、项目完工后的住宅销售净收入	19
9、月光谷俱乐部·西月光谷项目住宅户型定价	20
10、月光谷俱乐部项目 2021-2022 年销售的住宅单元	21
11、独栋别墅 Jack Creek Cabins JCC - A 户型	22
12、独栋别墅 Jack Creek Cabins JCC-B 户型	24
13、独栋别墅 Jack Creek Cabins JCC-C 户型	26
14、独栋别墅 Overlook Phase 2 OL2-A 户型	28

EB-5 投资相关 (EB-5 投资人与 EB-5 有限合伙公司之间)

1、EB-5 投资、借贷关系组织结构图	31
2、EB-5 贷款金额、期限	32
3、第一顺位抵押条款	33
4、第一顺位产权抵押政府登记文件	34
5、第一顺位产权抵押属性	35
6、母公司项目完工担保	36
7、EB-5 有限合伙管理人不得自由延期贷款条款 (投票条款)	37
8、EB-5 有限合伙管理人在贷款返还后必须及时分发给投资人条款	38
9、在借款方违约情况下贷款人的权利和措施	39

母公司 1-526 被拒或项目被拒还款担保	40
-----------------------------	----

2023 年 8 月项目实地考察照片	41
--------------------------	----

独家授权委托书	42
---------------	----

贝特曼高级法律服务、亿元 RMB 律师服务险	43
------------------------------	----

常见问题解答	44
--------------	----

新法 EB-5 旗舰型项目 八项安心守护	47
----------------------------	----

新法 EB-5 预留签证

136 STAT. 1070

PUBLIC LAW 117-103—MAR. 15, 2022

EB-5 Reform and
Integrity Act of
2022.

DIVISION BB—EB-5 REFORM AND INTEGRITY ACT OF 2022

8 USC 1101 note. SEC. 101. SHORT TITLE.

This division may be cited as the “EB-5 Reform and Integrity Act of 2022”.

SEC. 102. EB-5 VISA REFORMS.

(a) EMPLOYMENT CREATION.—Section 203(b)(5) of the Immigration and Nationality Act (8 U.S.C. 1153(b)(5)) is amended—

(1) in subparagraph (A)—

(A) in clause (i), by striking “(C), and” and inserting “(C) and which is expected to remain invested for not less than 2 years; and”; and

(B) in clause (ii)—

(i) by striking “and create” and inserting “by creating”; and

(ii) by inserting “, United States nationals,” after “citizens”;

(2) by amending subparagraph (B) to read as follows:

“(B) DESIGNATIONS AND RESERVED VISAS.—

“(i) RESERVED VISAS.—

“(I) IN GENERAL.—Of the visas made available under this paragraph in each fiscal year—

“(aa) 20 percent shall be reserved for qualified immigrants who invest in a rural area;

“(bb) 10 percent shall be reserved for qualified immigrants who invest in an area designated by the Secretary of Homeland Security under clause (ii) as a high unemployment area; and

“(cc) 2 percent shall be reserved for qualified immigrants who invest in infrastructure projects.

“(II) UNUSED VISAS.—

“(aa) CARRYOVER.—At the end of each fiscal year, any unused visas reserved for qualified immigrants investing in each of the categories described in items (aa) through (cc) of subclause (I) shall remain available within the same category for the immediately succeeding fiscal year.

“(bb) GENERAL AVAILABILITY.—Visas described in items (aa) through (cc) of subclause (I) that are not issued by the end of the succeeding fiscal year referred to in item (aa) shall be made available to qualified immigrants described under subparagraph (A).

“(ii) DESIGNATION OF HIGH UNEMPLOYMENT AREA.—

“(I) IN GENERAL.—The Secretary of Homeland Security, or a designee of the Secretary who is an employee of the Department of Homeland Security, may designate, as a high unemployment area, a census tract, or contiguous census tracts, in which—

每财年 TEA 预留签证:

20%- 乡村地区项目

10%- 城市高失业地区项目

2%- 政府基础设施建设项目

摘自 EB-5 改革与诚信法案 ‘The EB-5 Reform and Integrity Act of 2022’

乡村项目优先审理

PUBLIC LAW 117-103—MAR. 15, 2022

136 STAT. 1075

this paragraph with respect to more than 1 petition filed after the alien reaches 21 years of age.”

(c) **ENHANCED PAY SCALE FOR CERTAIN FEDERAL EMPLOYEES ADMINISTERING THE EMPLOYMENT CREATION PROGRAM.**—The Secretary of Homeland Security may establish, fix the compensation of, and appoint individuals to designated critical, technical, and professional positions needed to administer sections 203(b)(5) and 216A of the Immigration and Nationality Act (8 U.S.C. 1153(b)(5) and 1186b). 8 USC 1153 note.

(d) **CONCURRENT FILING OF EB-5 PETITIONS AND APPLICATIONS FOR ADJUSTMENT OF STATUS.**—Section 245 of the Immigration and Nationality Act (8 U.S.C. 1255) is amended—

(1) in subsection (k), in the matter preceding paragraph (1), by striking “or (3)” and inserting “(3), or (5)”; and

(2) by adding at the end the following:

“(n) If the approval of a petition for classification under section 203(b)(5) would make a visa immediately available to the alien beneficiary, the alien beneficiary’s application for adjustment of status under this section shall be considered to be properly filed whether the application is submitted concurrently with, or subsequent to, the visa petition.”

(e) **EFFECTIVE DATE.**—The amendments made by this section shall take effect on the date of the enactment of this Act. 8 USC 1153 note.

SEC. 103. REAUTHORIZATION AND REFORM OF THE REGIONAL CENTER PROGRAM.

(a) **REPEAL.**—Section 610 of the Departments of Commerce, Justice, and State, the Judiciary, and Related Agencies Appropriations Act, 1993 (8 U.S.C. 1153 note) is repealed.

(b) **AUTHORIZATION.**—

(1) **IN GENERAL.**—Section 203(b)(5) of the Immigration and Nationality Act (8 U.S.C. 1153(b)(5)) is amended by adding at the end the following:

“(E) **REGIONAL CENTER PROGRAM.**—

“(i) **IN GENERAL.**—Visas under this subparagraph shall be made available through September 30, 2027, to qualified immigrants (and the eligible spouses and children of such immigrants) pooling their investments with 1 or more qualified immigrants participating in a program implementing this paragraph that involves a regional center in the United States, which has been designated by the Secretary of Homeland Security on the basis of a proposal for the promotion of economic growth, including prospective job creation and increased domestic capital investment.

“(ii) **PROCESSING.**—In processing petitions under section 204(a)(1)(H) for classification under this paragraph, the Secretary of Homeland Security—

“(I) shall prioritize the processing and adjudication of petitions for rural areas;

“(II) may process petitions in a manner and order established by the Secretary; and

“(III) shall deem such petitions to include records previously filed with the Secretary pursuant to subparagraph (F) if the alien petitioner certifies that such records are incorporated by reference into the alien’s petition.

移民局必须优先审理乡村地区项目



U.S. Citizenship
and Immigration
Services

Home> Green Card> Green Card Processes and Procedures> Concurrent Filing of Form I-485

Concurrent Filing of Form I-485

双递交：在“递交移民签证”同时，递交 I-485 身份转换申请。

Concurrent filing of Form I-485, Application to Register Permanent Residence or Adjust Status is when an adjustment of status application (Form I-485) is filed prior to the approval of the underlying immigrant visa petition. To be considered concurrently filed, the immigrant visa petition and the adjustment of status application (Form I-485) are filed at the same time and mailed together with all the required filing fees and supporting documentation to the same filing location. They will also be considered concurrently filed if the adjustment of status application (Form I-485) is filed after the immigrant visa petition but while the immigrant visa petition remains pending.

Who can file concurrently?

在没有公告排期的时候，大部分职业类移民签证申请人及家属可以进行双递交。

We allow concurrent filing for:

- Immediate relatives of U.S. citizens living in the United States;
- Most employment-based applicants and their eligible family members when a visa number is immediately available;
- Special Immigrant Juveniles if an EB-4 visa number is immediately available and we have jurisdiction over the application to adjust status;
- Self-petitioning battered spouse or child if:
 - The abusive spouse or parent is a U.S. citizen; or
 - If an immigrant visa number is immediately available;
- Certain members of the armed forces applying for a special immigrant visa under Section 101(a)(27)(K) of the Immigration and Nationality Act (INA); and
- Special Immigrant International Organization Employees or family members.

Consular Processing and Concurrent Filing

Concurrent filing cannot occur in consular processed cases, as the immigrant petition is filed with USCIS and the application for an immigrant visa is filed with the Department of State. Therefore concurrent filing is only seen in the context of an immigrant who is adjusting to permanent resident status (a Green Card) while in the United States.

只有当申请人在美国的时候才可以进行双递交。

摘自 USCIS 移民局官网

区域中心批准函



U.S. Citizenship
and Immigration
Services

U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
Immigrant Investor Program
131 M Street, NE, Mailstop 2235
Washington, DC 20529

Date: March 23, 2023

Northern Rockies Regional Center, LLC
c/o Arnold E. Sherman
7310 Broken Bow
Missoula, MT 59808

Application: Form I-956
Application for Regional Center Designation

Applicant(s): Northern Rockies Regional Center, LLC

区域中心 Northern Rockies
Regional Center

(NRRC) 被移民局批准为本项目的区域中心

Re: Amendment to an Approved Regional Center
Northern Rockies Regional Center, LLC
INF2200000746 / RCID2200000746

On August 10, 2022, Northern Rockies Regional Center ("the Regional Center") filed a Form I-956 to request an amendment to its approved regional center in accordance with section 203(b)(5)(E) of the Immigration and Nationality Act ("INA"). The Regional Center entity was established on May 26, 2010, in Montana and is structured as a LLC. The Regional Center was initially approved for designation on April 11, 2011.

Effective as of the date of this notice, and as discussed further below, USCIS approves the Regional Center's request.

Legal Notice: This approval of a regional center under the Regional Center Program does not constitute or imply an endorsement or recommendation by USCIS, the United States Government or any instrumentality thereof, of the investment opportunities, projects or other business activities related to or undertaken by such regional center. Except as expressly set forth in this approval and designation, USCIS has not reviewed any information provided in connection with or otherwise related to the regional center for compliance with relevant securities laws or any other laws unrelated to eligibility for designation as a regional center. Accordingly, USCIS makes no determination or representation whatsoever regarding the compliance of

www.uscis.gov

TEA 乡村项目证明

BakerTilly 是全球领先的 EB-5 咨询公司。在全球 145 个地区，有 703 个办事处，和 41000 名员工。



Baker Tilly US, LLP
205 North Michigan Avenue
Chicago, IL 60601-5927
tel 312 729 8000
fax 312 729 8199
bakertilly.com

November 30, 2022

Re: Rural TEA Designation for Moonlight Basin West, Madison County, Montana

To Whom It May Concern:

Baker Tilly US, LLP ("Baker Tilly") has reviewed the status of the Moonlight Basin West Project located in Big Sky, Madison County, Montana. Madison County is determined to be a rural area, based upon the definitions stated in INA 203(b)(5)(B)(iii) and 8 CFR section 204.6(e) petitions for employment creation aliens. These definitions state that a rural area "means any area not within either a Metropolitan Statistical Area (as designated by the Office of Management and Budget "OMB") or the outer boundary of any city or town having a population of 20,000 or more."

According to 8 CFR section 204.6(j)(6)(i) a petition submitted for application as an alien entrepreneur in a rural area need show evidence that the new commercial enterprise is principally doing business within a civil jurisdiction not located within any Metropolitan Statistical Area as designated by the OMB, or within any city or town having a population of 20,000 or more as based on the most recent decennial census of the United States.

Baker Tilly has determined that the location of the project in Big Sky, Madison County, Montana and Madison County as a whole, is classified as a rural area as no parts of the county are within the civil jurisdictions of any Metropolitan Statistical Area and all cities and towns therein have a population of less than 20,000 according to the most recent U.S. 2010 decennial census data.

Madison County in its entirety is a rural area, including all cities and towns within, as they have populations of less than 20,000 and are located outside of a Metropolitan Statistical Area, and therefore qualify under the targeted employment area definition pursuant to 8 CFR sections 204.6(e) and 204.6(j)(6)(i). The American Community Survey 5-year (2016-2020) Population data for Madison County, Montana is shown below:

根据移民局对于“乡村地区的定义” - 人口不超过 2 万的城镇 - 本项目被定义为“乡村地区项目”。

1-956F 收据



U.S. Citizenship
and Immigration
Services

U.S. Citizenship and Immigration Services
P.O. Box 660168
Dallas, TX 75266-0168

August 7, 2023

Arnold Sherman
Northern Rockies Regional Center LLC
C/O Robert Divine
633 Chestnut St Ste 1900
Chattanooga, TN 37450

Regional Center ID: 2200000746
New Commercial Enterprise: CH MB Lender LLC
NCE ID: NCE2390000333

Application Type: Initial
Receipt Number: INF2360004388

本项目 1-956F 申请已递交至移民局，并且收到回执。

Dear Sir/Madam:

This is in reference to the Form I-956F, Application for Approval of an Investment in a Commercial Enterprise, you submitted.

Application/Petition Fee: \$17,795.00
Total Amount Received: \$17,795.00
Total Balance Due: \$0.00

Visit the USCIS Contact Center at www.uscis.gov/contactcenter to get answers to your questions and connect with a live USCIS representative. The USCIS Contact Center provides information in English and Spanish. For TTY (deaf or hard of hearing) call: 1-800-767-1833.

Thank you,
U.S. Citizenship and Immigration Services

CrossHarbor Capital Overview

Founded in 1993 by loan workout and property turnaround specialists, CrossHarbor is a long-standing, privately-owned investment and asset management firm focused exclusively on commercial real estate located within the United States. The firm manages multiple fund strategies that invest across the risk/return spectrum on behalf of a diversified and highly regarded group of endowments, foundations, public and corporate pension plans, financial institutions, family offices and sovereign entities.



30

YEARS IN BUSINESS



\$30 B

INVESTMENT TRACK
RECORD



360+

TRANSACTIONS



75+

EMPLOYEES



\$9.6 B

AUM



100+

INSTITUTIONAL INVESTORS

CrossHarbor 于 1993 年创立，是一家历史悠久的私人投资和资产管理公司，专注于美国境内的商业房地产。该公司管理多种基金策略，**代表超过 100 个多元化且备受推崇的机构投资人，涵盖捐赠基金、基金会、公共和企业养老金计划、金融机构、家族办公室和主权实体群体进行风险 / 回报范围内的投资。** CrossHarbor 管理的资产总额超过 96 亿美元，30 年内部收益率 IRR 达到 20%，与伯克希尔 - 哈撒韦持平。

越港资本创始人 Sam Byrne 访谈

"I had a three-pronged strategy at the time. One was to repair and rehabilitate it... The second phase was product creation, basically coming up with products that we thought people would want and gravitate to.

..The third prong for investors was monetization. Once we had invested all this capital, it was basically starting to distribute some of the proceeds from sales. Once we had the club on steady footing, operating at a break-even basis, property values just exploded in the marketplace, and we were able to start generating significant cash returns. I think we've returned four and a half times of invested capital from the initial capitalization. So, alongside the real estate, that's really the driver of the investment opportunity."

当时我有一个三管齐下的策略。第一步是修复和恢复它…第二步是产品创造，…第三步是实现投资者货币化。…我们到目前为止已经获得了 4.5 倍的回报。

"Additionally, during the development of the Yellowstone Club, we recognized the need to invest in the surrounding areas... This led us to make significant investments in Moonlight Basin and Spanish Peaks, where we still have 1,600 homes to build over the next 15 to 20 years...

Our involvement in Montana extends beyond the Yellowstone Club, including investments in community housing, conventional housing, and hotels. We recently opened the \$500 million Montage Resort Hotel, and we have an upcoming project, the first One and Only Resort in North America, slated to open in late 2024. Our commitment to the community will continue for the next 15 years and beyond."

在开发过程中，我们认识到需要对周边地区进行投资。…在未来 15 年到 20 年里，我们在月光盆地和西班牙峰仍然有 1,600 套房屋需要建造。…我们对社区的承诺将持续 15 年或更长。

摘自 Capital Allocators 的 Youtube 频道 / 原采访视频请见贝特曼微信公众号

月光谷俱乐部项目产权法律文件

Return To:
Security Title Company
P.O. Box 6550
Bozeman, MT 59771-6550

WHEN RECORDED
RETURN TO:

Barry D. Green, Esq.
Goulston & Storrs
400 Atlantic Avenue
Boston, MA 02110-3333

152839 RECORDS Pages: 16
STATE OF MONTANA MADISON COUNTY
RECORDED: 10/01/2013 3:25 KOI: DEED
Peggy Kaatz Stemler CLERK AND RECORDER
FEE: \$112.00 BY: *P. Kaatz Stemler*
TO: SECURITY TITLE COMPANY PO BOX 6550, BOZEMAN MT 59771

pm
pm

① M130041

SPECIAL WARRANTY DEED

FOR VALUABLE CONSIDERATION, the receipt and sufficiency of which are hereby acknowledged, MT MOONLIGHT BASIN RESORT OPS LLC of 1271 Avenue of the Americas, 38th Floor, New York, NY 10020 ("Grantor"), hereby grants unto MB MT ACQUISITION LLC, of One Boston Place, Suite 2300, Boston, Massachusetts 02108, ("Grantee"), the real property located in Madison County, Montana, which is more particularly described as follows:

See Exhibit A hereto (Legal Description)

TOGETHER WITH all of the tenements, hereditaments, fixtures, improvements, licenses, profit à prendre and any and all other appurtenances of any nature whatsoever thereunto pertaining, and the reversion and reversions, remainder and remainders, rents, issues and profits thereof; and also all of Grantor's estate, right, title, interest, property, possession, claim and demand whatsoever as well in law as in equity, of, in and to all easements, and accesses, together with water rights of any nature whatsoever, including but not limited to certificates, permits, statements of claim, contracts, water claims, ditch rights, well rights, water shares and any other instruments or evidence of legal entitlement to the use of water on, about, or for the benefit of the Real Property described on Exhibit "A" hereto, and all ditch rights, easements and other appurtenances necessary or associated in any way with the delivery and use of water on the Real Property.

本项目的母公司 MB MT Acquisition LLC 持有位于蒙大拿州麦迪逊县的不动产权文件。

月光谷俱乐部项目开发更新政府批准文件

MADISON COUNTY BOARD OF COMMISSIONERS

Commissioners

Dan W. Allhands
Ronald E. Nye
James P. Hart

P.O. BOX 278
VIRGINIA CITY, MT 59755
e-mail: madco@madisoncountymt.gov
www.madisoncountymt.gov

Phone: (406)843-4277
Fax: (406) 843-5517

MOONLIGHT BASIN OVERALL DEVELOPMENT PLAN 2018 UPDATE APPROVAL BOARD OF MADISON COUNTY COMMISSIONERS

At a regular meeting of the Board of Madison County Commissioners held on September 11, 2018, the Board of Commissioners reviewed the preliminary plat and the Madison County Planning Board's Findings of Fact for approval of the Moonlight Basin Overall Development Plan 2018 Update.

Landowner: MB MT Acquisitions LLC
c/o Lone Mountain Land Company
123 Snowy Mountain circle
Big Sky, MT 59716

月光谷俱乐部项目整体开发计划更新于2018年9月被批准。

Landowner Representative: Trever McSpadden
Haystack Development
P.O. Box 1793
Bozeman, MT 59771

月光谷俱乐部项目的土地拥有者为
MB MT Acquisitions LLC

PROPOSAL

Update 2007 Moonlight Basin Overall Development Plan. Refines development areas using constraints approach.

- Maintains residential density cap of 1,651 units.
- Approximately 270,000 square feet of commercial space, including club facilities, skier services, food and beverage outlets, and retail.
- Employee housing of up to 200 units (not included in cap).
- Proposed as a Planned Unit Development.
- Requesting waiver to allow white on brown street signs.
- Potential deviations to standards in future subdivisions described.

(August 2018 Update).

- Keeps additional 84 units in 3 pods in the northern Moonlight Territory area.
- Includes additional proposed mitigations.
- Refers to July 20, 2018 meeting with natural resource stakeholders.

Updates on Jack Creek Road slide, solid waste disposal site.

Location: Upper Jack Creek drainage north/northwest of Big Sky Mountain Village and Big Sky Resort between Custer Gallatin and Beaverhead Deerlodge National Forests.

A. Project Summary

The Project is a mixed-use real estate development project planned on a 970-acre site in Big Sky, Montana, USA. Today, the land is mostly un-improved open space, directly adjacent to the existing ski terrain of Big Sky Resort. A portion of the land is improved with a world-class, private 18-hole golf course (designed by Jack Nicklaus) that is accessible only to the members of Moonlight Club. Current improvements also include a small golf course clubhouse, restaurant, and related infrastructure. The aerial image below shows the land and current improvements.

The goals of the Project are threefold: first, to satisfy the tremendous demand for more luxury residential real estate in the Moonlight Basin master-planned community, which has been under-supplied by high-quality (i.e., newly constructed ski-in ski-out homes) residential offerings for several years running; second, to add ski terrain to Big Sky Resort; and third, to provide additional Moonlight Club amenities (golf holes, restaurants and other dining spaces, and other commercial spaces) to the swelling Moonlight Club membership which has grown from 152 in 2014 to 568 in 2022.

该项目的目标有三个：

- 第一、满足月光谷俱乐部项目总体规划社区对更多豪华住宅房地产的巨大需求；
- 第二、为大天空度假村增加滑雪区域；
- 第三、为日益增长的月光谷俱乐部会员提供额外的月光谷俱乐部设施（月光谷俱乐部会员数量已从 2014 年的 152 个会员家庭增长到 2022 年的 568 个会员家庭）。

The Project entails developing: a new (larger) golf clubhouse to accommodate the rapidly growing membership of Moonlight Club; 19 additional holes of golf; two new ski lifts and related ski infrastructure; and 82 homes and residential lots.

A detailed summary of the residential development is shown in the table below.

Residential Development Program

	# of Units	Avg. Sq Ft per Unit	Total Livable Sq Ft	Architect / Land Planner
5-bedroom Cabin	9	6,538	58,842	Reid Smith
4-bedroom Cabin (Type A)	13	3,413	44,369	Reid Smith
4-Bedroom Cabin (Type B)	2	3,407	6,814	Reid Smith
4-Bedroom Cabin (Type C)	4	3,639	14,556	Reid Smith
5-Bedroom Townhome	8	3,375	27,000	CCY Architects
Custom Home Lot	46			Hart Howerton
Total	82	1,849	151,581	

该项目包括以下内容：

- 建设 82 套住宅和住宅用地（28 个独栋别墅、8 个联排别墅、46 块房屋用地）
- 建设两个新的滑雪缆车和相关的滑雪基础设施；
- 建设一个新的（更大的）高尔夫俱乐部会所，并增加 19 个高尔夫球洞。

摘自项目私募备忘录

5. PROJECT DEVELOPMENT TIMELINE

5.1 Project Phases

本项目在 2023 年 6 月开工，2026 年 4 月竣工；工期总计 35 个月。

Administrative & Planning Phase

The Administrative phase includes land entitlements, design, civil engineering, permits, and applicable fees. Specific milestones within this phase may also include Project due diligence. Project's overall development approval issued by Board of Madison County Commissioners and permits received so far are included as EXHIBIT E.

Building Construction Phase

Building construction includes foundations, framing, exteriors, MEP, and interiors. Building construction is planned to start in June 2023 and will be completed in April 2026. A potential General Contractor has provided a construction schedule, which is attached as EXHIBIT C.

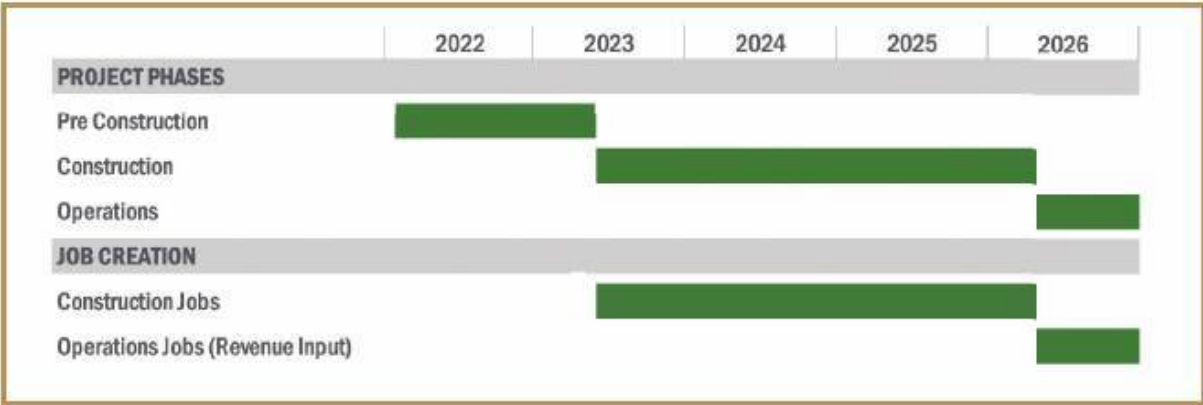
Operations

The project is scheduled to open May 2026. This business plan takes into consideration the resulting business activities within its market analyses (see section 7.0 Market Analysis). Operational jobs are considered for job creation (see section 8.0 Employment).

5.2 EB-5 Timeline

Figure 5-1 illustrates the timing of job creation in relation to the project development schedule and demonstrates that all required jobs will be created by the end of the conditional residency period.

Figure 5-1: Development Timeline and Job Creation



建筑期间会创造大部分的就业机会。

摘自项目商业计划书

8. EMPLOYMENT

8.1 Targeted Employment Area

Under the EB-5 immigrant investor program, an alien can become eligible to obtain United States permanent resident status by investing either US \$1,050,000 or US \$800,000 in a new commercial enterprise in the United States. To participate in the immigrant investor program through investing the lower US \$800,000 amount, the alien must invest his/her capital funds into a geographic area that qualifies as a TEA.

Section 203(b)(5)(B) of the INA defines a TEA as an area that, at the time of investment, is a rural area or an area that has experienced an unemployment rate that is at least 150 percent of the national average unemployment rate.

Specific to the Project, which is located within the boundary of the regional center's USCIS-designated geographic region, the minimum threshold for an individual alien investor's capital investment into a new commercial enterprise will be \$800,000 because the investment will be made in a TEA as the project site is rural. See EXHIBIT G.

8.2 Job Creation

The economic impact analysis conducted by Baker Tilly US, LLP finds that the Project will generate significant and positive economic benefits for the local, regional, and U.S. economy. The total investment will be \$367,324,976 and the EB-5 investment into the project will be up to a maximum of \$172,000,000, from as many as 215 foreign investors.

EB-5 rules outlined in the EB-5 Reform and Integrity Act of 2022 state that the project can satisfy only up to 90% of total required jobs created indirectly. The EB-5 Reform, and Integrity Act of 2022 also allows for the inclusion of economically and statistically valid methodologies for determining the number of jobs created directly by the project using capital expenditures and revenues generated. The Project anticipates up to a maximum of 215 investors pooling \$172,000,000 in EB-5 funds. Of the 2,150 required jobs, 215 must be direct jobs. Based on this economic analysis, the project is anticipated to create 4,630.7 jobs of which 2,632.1 of the jobs are model derived direct jobs. Therefore, the project meets or exceeds the requirements of the EB-5 program.

The following table demonstrates the breakdown of jobs utilizing the RIMS II input/output model:

移民局规定每个投资人需要创造 10 个直接就业数。根据第三方经济研究报告，本项目预计将创造 4630.7 个就业数，是移民局要求的 2.5 倍。

摘自项目商业计划书

4. DEVELOPMENT COSTS AND CAPITALIZATION

4.1 Capitalization

The JCE anticipates the Project to have a capital development budget of \$367,324,976, inclusive of financing costs. The budget for the Project will be secured through a loan from the NCE and through the JCE equity. The JCE will seek a target raise of \$150,400,000 with a maximum of up to \$172,000,000 in EB-5 financing. The balance will be funded through JCE equity.

开发商本金占比 59%

Table 4-1 provides the sources of funding for the Project.

Table 4-1: Project Capitalization

Category	%	Amount
Owner Equity	59.06%	\$216,924,976
EB-5 Funds*	40.94%	\$150,400,000
Total	100.00%	\$367,324,976

*The NCE reserves the right to raise up to a maximum of \$172,000,000 in EB-5 capital

Category	%	Amount
Owner Equity	53.17%	\$195,324,976
EB-5 Funds*	46.83%	\$172,000,000
Total	100.00%	\$367,324,976

*The NCE reserves the right to raise up to a maximum of \$172,000,000 in EB-5 capital

4.2 Use of Funds

The Project is anticipated to cost a total of \$367,324,976. Table 4-2 provides the JCE's budget for the Project.

Table 4-2: Project Budget

Category	%	Amount
Non-Residential Hard Costs	42.86%	\$157,417,161
Residential Hard Costs	48.18%	\$176,972,577
Architectural & Engineering	2.68%	\$9,835,587
Soft Costs	2.19%	\$8,026,293
CM/Dev Fees	4.10%	\$15,073,358
Total	100.00%	\$367,324,976

项目总开发成本为 3.67 亿美元

摘自项目商业计划书

项目完工后的住宅销售净收入

预计项目完工后，住宅部分销售的净收入为 4.7 亿美元，净利润为 8285 万美元。

6. FINANCIAL PERFORMANCE

The Developer estimates that the Project will generate a total of \$474,697,755 in net residential sales proceeds and an additional \$10,604,560 in other revenue through 2034. The total development cost of this phase of the Project is \$367,324,976, inclusive of financing costs. The net profit for this phase is projected to be \$82,852,321.

Table 6-1 provides the Developer's profit and loss projections for the Project.

Table 6-1: Profit and Loss Projections

	Through 2022	2023	2024	2025	2026	2027	2028 to 2034	Total Project
Income from Residential Sales								
Gross Residential Sales	-	73,768,408	78,219,100	169,951,000	185,723,500	4,000,000	-	511,662,008
Less: Sales Costs	-	(4,420,000)	(3,605,000)	(14,523,635)	(14,125,610)	(290,000)	-	(36,964,245)
Total Residential Proceeds	-	69,348,408	74,614,100	155,427,365	171,597,890	3,710,000	-	474,697,755
Less: Development Costs								
General planning, Infrastructure, & Amenities	(5,519,299)	(24,864,896)	(37,266,782)	(29,664,759)	(14,510,816)	(2,592,573)	(10,098,852)	(124,517,977)
In-Tract Infrastructure	(16,563)	(8,628,943)	(7,343,023)	(1,236,802)	(53,566)	-	-	(17,248,895)
In-Tract Amenities (Golf Clubhouse)	(290,400)	(6,028,000)	(12,056,000)	(12,056,000)	-	-	-	(30,430,400)
Vertical Development	(50,000)	(17,277,463)	(78,483,782)	(65,183,083)	(5,520,392)	-	-	(166,514,720)
CM/Dev Fees	(29,628)	(2,011,355)	(6,873,708)	(5,749,937)	(408,731)	-	-	(15,073,358)
Contingency	(6,656)	(2,489,924)	(6,052,163)	(4,689,268)	(301,614)	-	-	(13,539,625)
Total Development Costs	(5,912,547)	(61,300,579)	(148,045,458)	(118,579,849)	(20,795,118)	(2,592,573)	(10,098,852)	(367,324,976)
Other Revenue (Costs)								
Membership Deposits	-	2,500,000	3,350,000	2,520,000	2,300,000	-	-	10,670,000
MBWS Allocation	-	(93)	(1,870)	144	(8,465)	(9,881)	(45,274)	(65,440)
Total Other Revenue (Costs)	-	2,499,907	3,348,130	2,520,144	2,291,535	(9,881)	(45,274)	10,604,560
Unlevered Project Cash Flow	(5,912,547)	10,547,728	(70,083,228)	39,367,659	153,094,306	1,107,546	(10,144,126)	117,977,339
EB-5 Financing Costs	-	34,937,286	105,698,416	(3,302,053)	(8,272,000)	(8,272,000)	(155,914,667)	(35,125,018)
Project Cash Flow	(5,912,547)	45,485,011	35,615,189	36,065,606	144,822,306	(7,164,454)	(166,058,793)	82,852,321

Table 6-2 provides the Developer's pricing for the 28 single-family homes and 8 townhomes. All units are priced at \$2,000 per square foot.

Table 6-2: Unit Pricing

Golf Neighborhood						
Product Types	JCC Type A	JCC Type B	JCC Type C	OL2 Type A	Townhomes	Custom Lots
Units	4	2	4	6	8	7
Sf/unit	3,413	3,407	3,639	6,538	3,375	-
Ave Cost	4,900,000	4,900,000	5,200,000	8,253,000	4,317,000	-
Ave Purchase Price	6,826,000	6,814,000	7,278,000	13,076,000	6,750,000	7,500,000

Lower Hillside			
Product Types	JCC Type A	OL2 Type A	Custom Lots
Units	9	3	39
Sf/unit	3,413	5,538	-
Ave Cost	4,900,000	8,253,000	-
Ave Purchase Price	6,826,000	13,075,000	4,000,000

Table 6-3 shows comparable sales in the market. The units sold range between \$1,511.28 and \$2,532.97 per square foot, which support's the Developer's pricing of \$2,000 per square foot for the subject units.

月光谷俱乐部·西月光谷项目住宅户型定价

Table 6-2: Unit Pricing

Golf Neighborhood						
Product Types	JCC Type A	JCC Type B	JCC Type C	OL2 Type A	Townhomes	Custom Lots
Units	4	2	4	6	8	7
Sf/unit	3,413	3,407	3,639	6,538	3,375	-
Ave Cost	4,900,000	4,900,000	5,200,000	8,253,000	4,317,000	-
Ave Purchase Price	6,826,000	6,814,000	7,278,000	13,076,000	6,750,000	7,500,000

Lower Hillside			
Product Types	JCC Type A	OL2 Type A	Custom Lots
Units	9	3	39
Sf/unit	3,413	6,538	-
Ave Cost	4,900,000	8,253,000	-
Ave Purchase Price	6,826,000	13,076,000	4,000,000

同户型以往售价对比

Table 6-3: Comparable Sales

Jack Creek Cabins			
Product Types	Type A	Type B	Type C
Units	6	3	4
Sf/unit	3,413	3,407	3,639
Ave Cost	4,400,000	4,400,000	4,600,000
Ave Purchase Price	5,158,000	5,266,000	5,562,000

Overlook Phase 2		
Product Types	Type A	Type B
Units	2	4
Sf/unit	6,538	5,516
Ave Cost	9,159,000	7,585,000
Ave Purchase Price	11,500,000	9,450,000

One & Only				
Product Types	Deluxe	Medium	Large A	Large B
Units	17	21	6	18
Sf/unit	5,751	3,670	4,428	4,777
Ave Cost	7,600,000	5,000,000	5,000,000	6,500,000
Ave Purchase Price	14,200,000	9,000,000	10,100,000	12,100,000

已卖出单位的售价在每平方英尺 1511.28 美元至 2532.97 美元之间，根据 bigskyrealestate.com 网站显示，月光谷俱乐部项目新房预售已达每平方英尺 2600 美元。

THE BIG SKY
REAL ESTATE CO.

406.995.6333 | (0) FAVORITES | CONTACT

PROPERTIES ▾ NEIGHBORHOODS ▾ NEW OFFERINGS ▾ BIG SKY LIFE ▾ OUR BROKERAGE ▾



124 Ulerys Lakes Road
\$29,995,000
6 BD | 7 BA | 3 PWD | 9,288 SF



TBD One&Only Private Home #13
\$15,000,000
6 BD | 6 BA | 1 PWD | 5,751 SF



TBD One&Only Private Home #11
\$14,100,000
6 BD | 6 BA | 1 PWD | 5,751 SF



TBD One&Only Private Home #12
\$12,650,000
6 BD | 6 BA | 4,818 SF



TBD One&Only Private Home #18
\$12,500,000
6 BD | 6 BA | 4,818 SF



TBD One&Only Private Home #19
\$15,000,000
6 BD | 6 BA | 1 PWD | 5,751 SF



TBD One&Only Private Home #17
\$12,250,000
6 BD | 6 BA | 4,818 SF



7 Deep Forest Drive, DFD Condominium 2
\$7,500,000
6 BD | 6 BA | 4,336 SF

摘自项目商业计划书

月光谷俱乐部项目 2021-2022 年销售的住宅单元

Type Classification	Contract Date	Subdivision/Complex	Total Sq Ft	Total Number of Acres	Close Price	Price/SQFT	Price Per Acre
Lot	3/24/2021	Cowboy Heaven		3.17	2,225,000	-	701,893
Lot	8/18/2021	Ulerys Lakes of Moonlight Basin Ranch		1	2,500,000	-	2,500,000
Lot	9/25/2021	Cowboy Heaven		1.07	4,000,000	-	3,738,318
Lot	8/8/2021	Overlook Ph. 2		0.73	4,000,000	-	5,479,452
Lot	8/6/2021	Overlook Ph. 2		1.14	3,850,000	-	3,377,193
Lot	8/6/2021	Overlook Ph. 2		1.02	3,850,000	-	3,774,510
Lot	8/4/2021	Overlook Ph. 2		0.95	3,250,000	-	3,421,053
Lot	8/4/2021	Overlook Ph. 2		1.13	4,000,000	-	3,539,823
Lot	10/30/2021	Overlook Ph. 2		0.74	3,500,000	-	4,729,730
Lot	11/27/2021	Overlook Ph. 2		1.23	3,750,000	-	3,048,780
Lot	1/6/2022	Overlook Ph. 2		0.87	3,750,000	-	4,310,345
Lot	7/1/2022	Cowboy Heaven		1.6	4,000,000	-	2,500,000
Lot	8/26/2022	Overlook		1.02	3,700,000	-	3,627,451
Lot	3/3/2022	Overlook Ph. 2		1	2,850,000	-	2,850,000
Multi-Family	2/10/2021	Ulerys Ph 3 - Lake Lodge	1130		1,850,000	1,637	-
Multi-Family	2/27/2021	Ulerys Ph 3 - Lake Lodge	1938		3,750,000	1,935	-
Single-Family	7/3/2021	Cowboy Heaven	780	0	1,600,000	2,051	-
Multi-Family	1/12/2021	Ulerys Ph 3 - Lake Lodge	1648		2,800,000	1,699	-
Multi-Family	2/8/2021	Ulerys Ph 3 - Lake Lodge	1130		1,850,000	1,637	-
Multi-Family	2/5/2021	Ulerys Ph 3 - Lake Lodge	1130		1,850,000	1,637	-
Multi-Family	8/19/2021	Lakeview Cabin Ph 1	1390		2,750,000	1,978	-
Multi-Family	9/23/2021	Ulerys Ph 3 - Lake Lodge	1938		3,550,000	1,832	-
Multi-Family	9/26/2021	Gateway	2057		3,450,000	1,677	-
Multi-Family	11/24/2021	Ulerys Cabins	1389		2,850,000	2,052	-
Multi-Family	1/14/2022	Lodgeside Condominium	2555		4,500,000	1,761	-
Single-Family	4/16/2022	Ulerys Lakes of Moonlight Basin Ranch	4430	20.04	13,000,000	2,935	-
Single-Family	5/23/2022	Alpine Meadow	2560		4,500,000	1,758	-
Single-Family	6/12/2022	Timbers	4946	0.32	10,500,000	2,123	-
Single-Family	6/15/2022	Silvertip	3571	0.23	6,500,000	1,820	-
Single-Family	8/3/2022	Silvertip	1866	0.18	3,600,000	1,929	-
Single-Family	8/11/2022	Cowboy Heaven	780	0.05	2,080,000	2,667	-
Multi-Family	7/18/2022	Lake Lodge Residences	1648		4,700,000	2,852	-
Multi-Family	8/1/2021	Ulerys Ph 5 - Jack Creek Cabins	3639		5,550,000	1,525	-
Multi-Family	8/21/2021	Ulerys Ph 5 - Jack Creek Cabins	3639		5,550,000	1,525	-
Multi-Family	7/26/2021	Ulerys Ph 5 - Jack Creek Cabins	3639		5,550,000	1,525	-
Multi-Family	3/22/2021	Ulerys Ph 5 - Jack Creek Cabins	3639		5,600,000	1,539	-
Multi-Family	9/2/2022	Ulerys Ph 5 - Jack Creek Cabins	3413		6,400,000	1,875	-
Multi-Family	7/6/2021	Ulerys Ph 5 - Jack Creek Cabins	3413		5,200,000	1,524	-
Multi-Family	7/6/2021	Ulerys Ph 5 - Jack Creek Cabins	3413		5,150,000	1,509	-
Multi-Family	3/25/2021	Ulerys Ph 5 - Jack Creek Cabins	3407		5,250,000	1,541	-
Multi-Family	3/6/2021	Ulerys Ph 5 - Jack Creek Cabins	3407		5,300,000	1,556	-
Multi-Family	3/7/2021	Ulerys Ph 5 - Jack Creek Cabins	3413		5,500,000	1,611	-
Multi-Family	3/31/2021	Ulerys Ph 5 - Jack Creek Cabins	3407		5,250,000	1,541	-
Single-Family	10/13/2021	Overlook Ph. 2	6538	0.5	11,500,000	1,759	-
Multi-Family	9/6/2022	Silvertip	4336		7,600,000	1,753	-
Single-Family	3/27/2022	Overlook Ph. 2	5516	0.46	9,500,000	1,722	-
Single-Family	3/27/2022	Overlook Ph. 2	5516	0.47	9,250,000	1,677	-
Single-Family	4/4/2022	Overlook Ph. 2	5516	0.47	9,650,000	1,749	-
Single-Family	3/3/2022	Overlook Ph. 2	6538	0.56	11,500,000	1,759	-
Single-Family	2/28/2022	One & Only Ph. 1	5751		13,450,000	2,339	-
Single-Family	12/31/2022	One & Only Ph. 1	4428		10,450,000	2,360	-
Single-Family	2/28/2022	One & Only Ph. 1	3670		8,700,000	2,371	-
Single-Family	7/31/2022	One & Only Ph. 1	5751		13,950,000	2,426	-
Single-Family	7/31/2022	One & Only Ph. 1	3670		8,950,000	2,439	-
Single-Family	2/28/2022	One & Only Ph. 1	4428		10,700,000	2,416	-
Single-Family	2/28/2022	One & Only Ph. 1	3670		8,950,000	2,439	-
Single-Family	7/31/2022	One & Only Ph. 1	5751		14,200,000	2,469	-
Single-Family	4/30/2022	One & Only Ph. 1	3670		8,950,000	2,439	-
Single-Family	3/31/2022	One & Only Ph. 1	5751		13,450,000	2,339	-
Single-Family	2/28/2022	One & Only Ph. 1	5751		12,450,000	2,165	-
Single-Family	12/31/2022	One & Only Ph. 1	4428		9,700,000	2,191	-
Single-Family	2/28/2022	One & Only Ph. 1	3670		8,450,000	2,302	-
Single-Family	3/31/2022	One & Only Ph. 1	3670		8,500,000	2,316	-
Single-Family	7/31/2022	One & Only Ph. 1	3670		8,550,000	2,330	-
Single-Family	8/31/2022	One & Only Ph. 1	4428		9,950,000	2,247	-
Single-Family	9/30/2022	One & Only Ph. 1	4428		9,950,000	2,247	-
Single-Family	3/31/2022	One & Only Ph. 1	5751		12,200,000	2,121	-
Single-Family	2/28/2022	One & Only Ph. 2	4428		9,950,000	2,247	-
Single-Family	8/31/2022	One & Only Ph. 2	5751		14,100,000	2,452	-
Single-Family	12/31/2022	One & Only Ph. 2	4818		11,640,000	2,416	-
Single-Family	7/31/2022	One & Only Ph. 2	5751		15,000,000	2,608	-
Single-Family	10/31/2022	One & Only Ph. 2	3670		8,900,000	2,425	-
Single-Family	12/31/2022	One & Only Ph. 2	3670		9,100,000	2,480	-
Single-Family	8/31/2022	One & Only Ph. 2	4818		12,500,000	2,594	-
Single-Family	8/31/2022	One & Only Ph. 2	5751		15,000,000	2,608	-

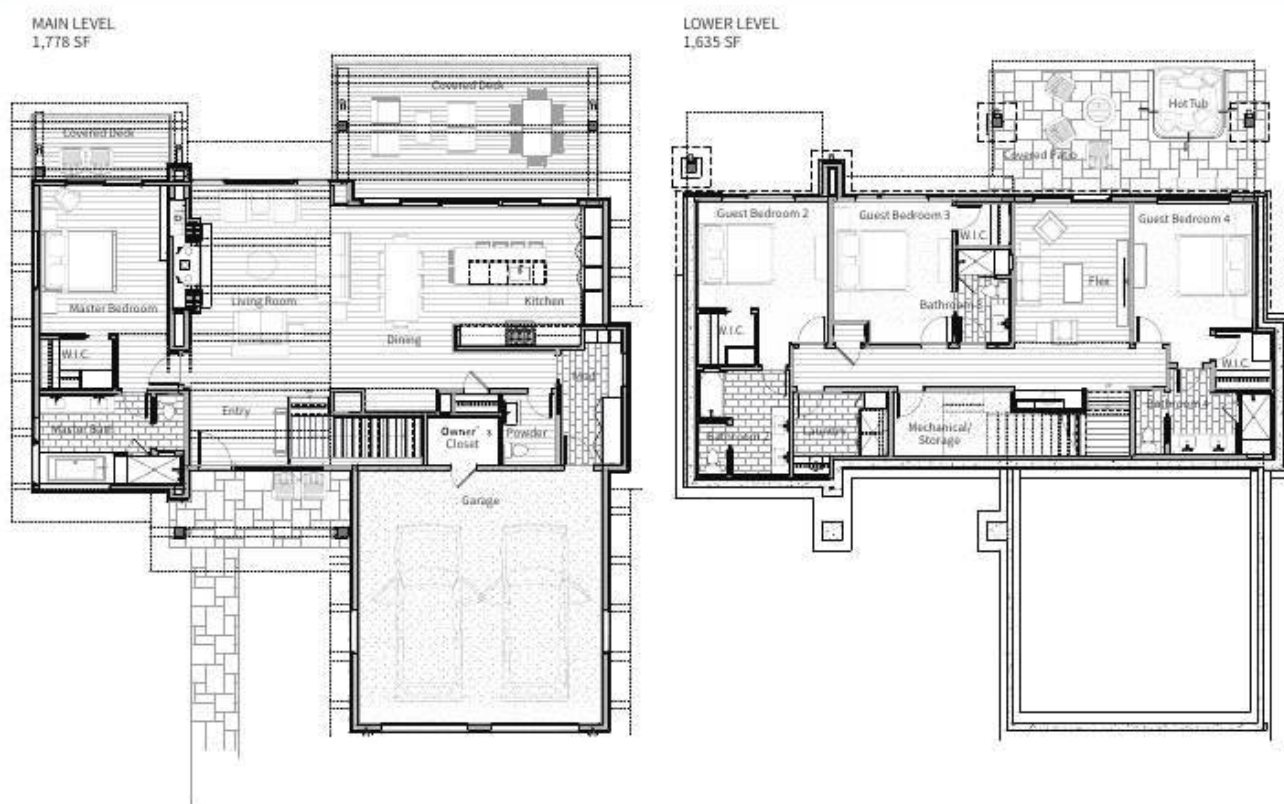
摘自项目商业计划书

独栋别墅 Jack Creek Cabins JCC-A 户型

面积：3413 平方英尺
平均定价：682.6 万美金

Figure 3-8: Cabin Type A Floor Plan

RESIDENCE A 3,413 SF | 4 BED + 4.5 BATH | TWO-CAR GARAGE



平面图 摘自项目商业计划书

独栋别墅 Jack Creek Cabins JCC-A 户型



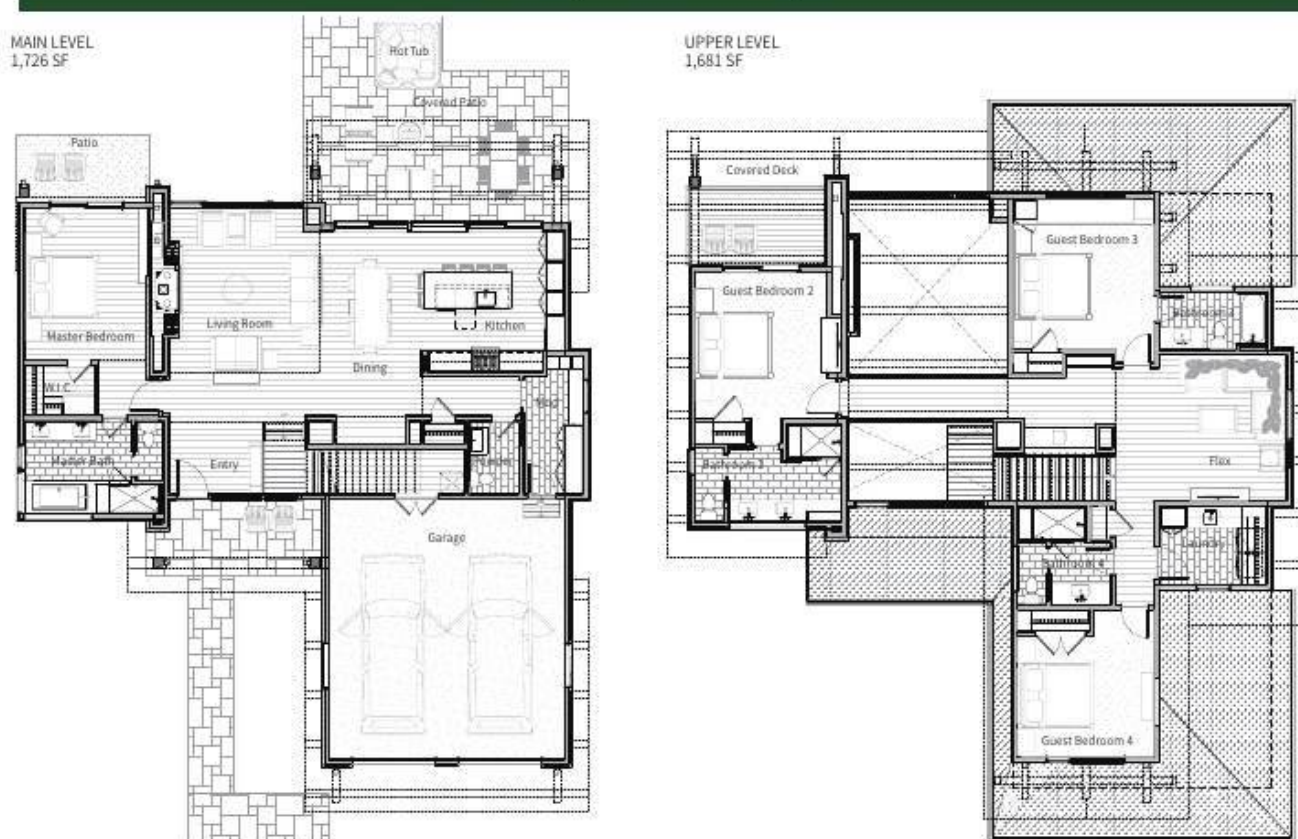
效果图

独栋别墅 Jack Creek Cabins JCC-B 户型

面积：3407 平方英尺
平均定价：681.4 万美金

Figure 3-9: Cabin Type B Floor Plan

RESIDENCE B 3,407 SF | 4 BED + 4.5 BATH | TWO-CAR GARAGE



平面图 摘自项目商业计划书

独栋别墅 Jack Creek Cabins JCC-B 户型



效果图

独栋别墅 Jack Creek Cabins JCC-C 户型

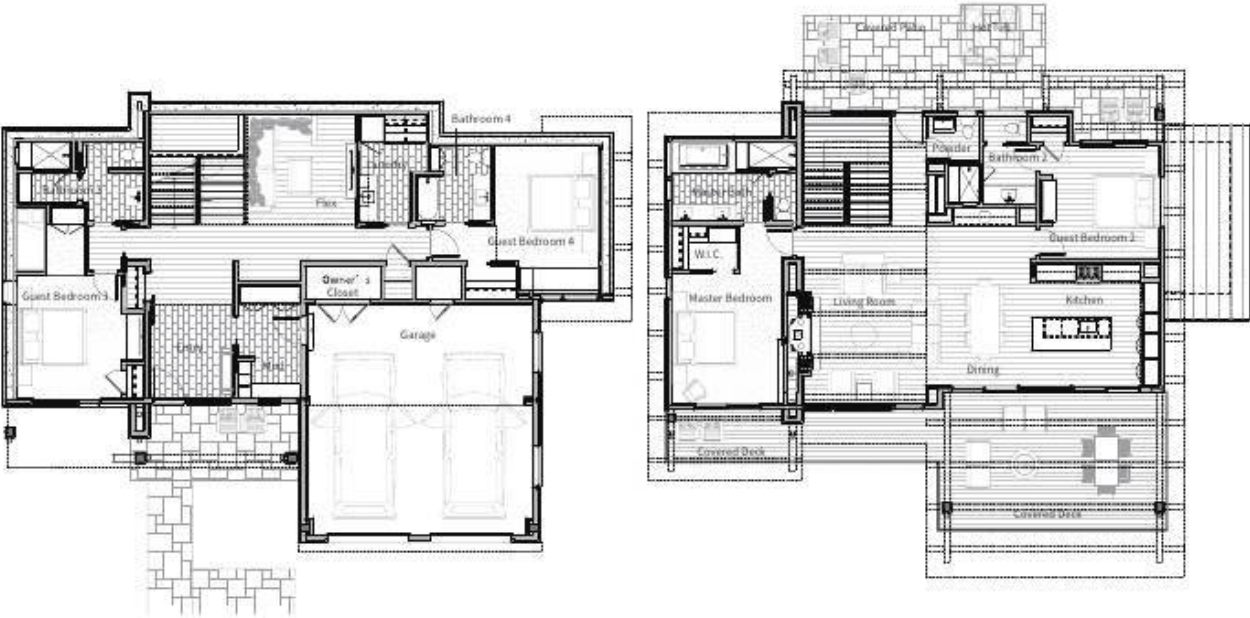
面积：3639 平方英尺
平均定价：727.8 万美金

Figure 3-10: Cabin Type C Floor Plan

RESIDENCE C 3,639 SF | 4 BED + 4.5 BATH | TWO-CAR GARAGE

MAIN LEVEL
1,978 SF

UPPER LEVEL
1,661 SF



平面图 摘自项目商业计划书

独栋别墅 Jack Creek Cabins JCC-C 户型



效果图

独栋别墅 Overlook Phase 2 OL2-A 户型

面积：6538 平方英尺 平均定价：1307.6 万美金

Figure 3-11: Overlook 2 Type A Floor Plan



平面图

独栋别墅 Overlook Phase 2 OL2-A 户型



效果图

独栋别墅 Overlook Phase 2 OL2-A 户型



效果图

EB-5 投资、借贷关系组织结构图

I. OFFERING SUMMARY

This Offering Summary should not be considered comprehensive or complete and is qualified by the more detailed information appearing elsewhere in this Offering Memorandum, including the Exhibits hereto. Prospective Investors should carefully read this entire Offering Memorandum, especially the matters discussed under "V. RISK FACTORS."

The Company: CH MB EB5 Lender LLC, a Delaware limited liability company.

The Manager: CH MB EB5 Manager LLC, a Delaware limited liability company.

The Borrower: MB West Owner LLC, a Delaware limited liability company.

The Developer: Lone Mountain Land Company LLC, a Delaware limited liability company, under a development services agreement with the Borrower.

The Sponsor: CrossHarbor Capital Partners LLC, a Delaware limited liability company.

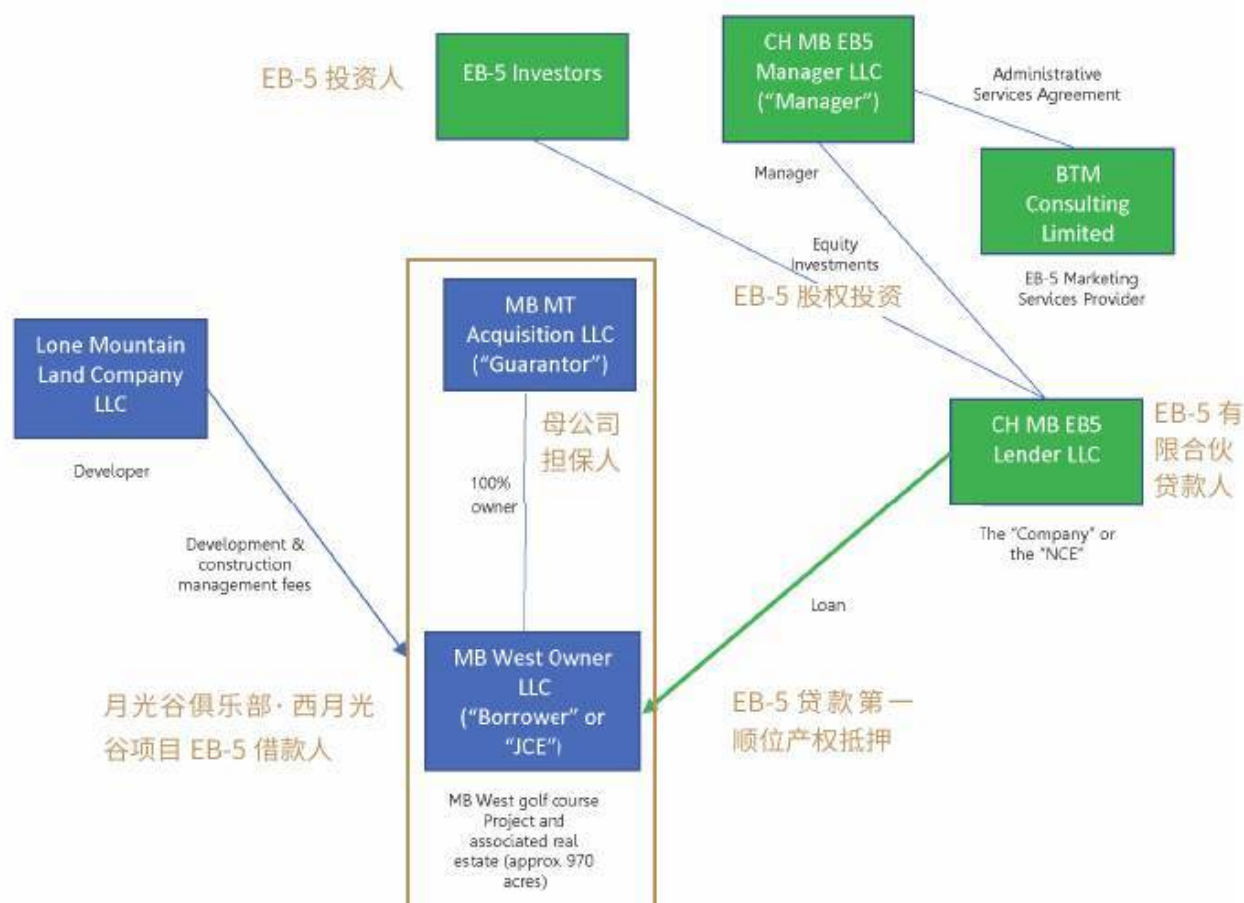
The Guarantor: MB MT Acquisition LLC, a Delaware limited liability company.

贷款方 - 即募集方为 CH MB EB5 LENDER LLC，是本项目的 EB-5 有限合伙公司；

开发商为 CrossHarbor Capital Partners LLC（越港资本）；

施工方为 Lone Mountain Land Company LLC，是越港资本在当地的开发部门；

借款方为 MB West Owner LLC，是本项目（月光谷俱乐部·西月光谷）的项目公司。



EB-5 贷款期限

FIRST AMENDMENT TO LOAN AGREEMENT

This FIRST AMENDMENT TO LOAN AGREEMENT (this “First Amendment”) is made as of January 2, 2024 by and between **MB West Owner LLC**, a Delaware limited liability company (“Borrower”), and **CH MB EB5 Lender LLC**, a Delaware limited liability company (“Lender”).

WHEREAS, Borrower and Lender entered into that certain Loan Agreement dated as of July 10, 2023 (the “Loan Agreement”), relating to a certain loan in the principal amount of up to \$172,000,000.00 from Lender to Borrower (the “Loan”); and

WHEREAS, Borrower and Lender have agreed to modify the term of the Loan on the terms hereinafter set forth.

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the undersigned parties hereby agree as follows:

1. Capitalized terms used but not defined herein shall have the meanings ascribed to such terms in the Loan Agreement.

2. Section 2.6.1 of the Loan Agreement is hereby deleted in its entirety and replaced with the following:

The term of the Loan shall begin on the earlier of (1) the funding date of the final advance of the Loan or (2) March 1, 2024, and shall continue until the third (3rd) anniversary of the commencement of the term of the Loan (the “Initial Maturity Date”); provided, however, the Borrower, at its sole discretion, may extend the term of the Loan for four (4) additional 1-year periods (each, an “Extended Term”) upon written notice to the Lender on or before the date that is thirty (30) days prior to the Initial Maturity Date or the expiration of each Extended Term, as applicable. The principal of the Loan and all accrued but unpaid interest shall be due and payable at the Maturity Date.

3. Any and all references to the Loan Agreement in the Loan Documents shall be deemed to refer to the Loan Agreement as amended by this First Amendment and as may be further amended from time to time in accordance with the terms of the Loan Agreement.

4. All of the terms and conditions of the Loan Documents (except as modified hereby) shall remain in full force and effect, and Borrower hereby confirms and ratifies all of the representations, warranties and covenants contained in the Loan Agreement and the other Loan Documents in all respects as of the date hereof (except for those which are expressly relate to an earlier date).

5. This First Amendment shall take effect under the laws of the State of Delaware as of the date first above written.

根据移民局要求的资金须处于 2 年风险投资期的新规，本项目基础投资期为 3 年，另加 4 个 1 年的延期权。项目方在一、二期项目中，仅使用 3 年贷款期，且从未使用过延期权。

第一顺位抵押条款

- (5) Collateral: The Loan shall be secured by a first mortgage from the Borrower on the real property upon which the Project is to be built.

抵押物：贷款将以借款人对项目所建不动产的第一顺位产权抵押作为担保。

7. **Secured Note.** The Loan will be secured by a mortgage on the Property from Borrower in favor of Lender.

抵押票据：借款将由借款人向贷款人提供的对不动产的抵押（抵押权）作为担保。

THIS CONSTRUCTION MORTGAGE AND FIXTURE FINANCING STATEMENT (this "**Mortgage**") dated as of _____, 2023, is made and executed by and between **MB WEST OWNER LLC**, a Delaware limited liability company (the "**Grantor**"), and **CH MB EB5 LENDER LLC**, a Delaware limited liability company (the "**Lender**").

MAXIMUM LIEN. The total principal, exclusive of interest and the cost, expenses and all other obligations which are not required to be stated as part of the total principal amount of the Indebtedness secured, that may be outstanding at any given time which is secured by this Mortgage is \$172,000,000.00, which shall also be deemed the stated principal amount of this Mortgage; provided that nothing in this Mortgage shall obligate the Lender to make advances beyond that provided in the Note secured hereby and the Loan Documents.

MATURITY OF INDEBTEDNESS. The Indebtedness shall be due and payable in full on Maturity Date (as defined in the Loan Agreement), subject to all extensions, renewals and modifications thereof.

GRANT OF MORTGAGE. For valuable consideration, Grantor mortgages and conveys to Lender all of Grantor's right, title, and interest in and to the following described real property ("**Real Property**"), together with all of Grantor's right, title and interest in and to all existing or subsequently erected or affixed buildings, improvements and fixtures; all easements, rights of way, and appurtenances; all water, water rights, watercourses and ditch rights (including stock in utilities with ditch or irrigation rights); and all other rights, royalties, and profits relating to the real property, including without limitation all minerals, oil, gas, geothermal and similar matters (collectively, with the Real Property, the "**Property**") located in Big Sky, Montana and legally described as follows:

抵押权：出让人 (Grantor) 将位于蒙大拿州大天空 (Big Sky, Montana) 的不动产及其相关权益抵押并转让给贷款人 (Lender)。包括不动产、已经存在或将来建造或附着的建筑物、加盖和装置的所有权益，以及与房地产相关的一切权益，包括但不限于水源、水权、水道权、附属权益、矿物、石油、天然气、地热等。

摘自私募备忘录、贷款协议

第一顺位产权抵押政府登记文件

Return To:
Security Title Company
P.O. Box 6550
Bozeman, MT 59771-6550
STC-m-23-86
RECORDATION REQUESTED BY:

本项目中 1.72 亿的 EB-5 贷款的产权抵押已在蒙大拿州麦迪逊县的政府部门登记。

Lauree E. Mansour, Esq.
Mansour Law Offices LLC
One Boston Place
Suite 2300
Boston, Massachusetts 02108



Doc #: 210504 eRecorded Pages: 9 Book: Page:
STATE OF MONTANA MADISON COUNTY
Recorded 7/19/2023 3:35 PM KOI: MTG/DOT
Paula McKenzie, CLERK & RECORDER
Fee: \$ 72.00 BY: Paula McKenzie
To: Security Title Company, 600 S 19th Ave, Bozeman MT 59718-4028

CONSTRUCTION MORTGAGE AND FIXTURE FINANCING STATEMENT

THIS CONSTRUCTION MORTGAGE AND FIXTURE FINANCING STATEMENT (this "**Mortgage**") dated as of JULY 19, 2023, is made and executed by and between **MB WEST OWNER LLC**, a Delaware limited liability company (the "**Grantor**"), and **CH MB EB5 LENDER LLC**, a Delaware limited liability company (the "**Lender**").

以本产权作为抵押的贷款本金不得超过 1.72 亿美金

MAXIMUM LIEN. The total principal, exclusive of interest and the cost, expenses and all other obligations which are not required to be stated as part of the total principal amount of the Indebtedness secured, that may be outstanding at any given time which is secured by this Mortgage is \$172,000,000.00, which shall also be deemed the stated principal amount of this Mortgage; provided that nothing in this Mortgage shall obligate the Lender to make advances beyond that provided in the Note secured hereby and the Loan Documents.

MATURITY OF INDEBTEDNESS. The Indebtedness shall be due and payable in full on Maturity Date (as defined in the Loan Agreement), subject to all extensions, renewals and modifications thereof.

GRANT OF MORTGAGE. For valuable consideration, Grantor mortgages and conveys to Lender all of Grantor's right, title, and interest in and to the following described real property ("**Real Property**"), together with all of Grantor's right, title and interest in and to all existing or subsequently erected or affixed buildings, improvements and fixtures; all easements, rights of way, and appurtenances; all water, water rights, watercourses and ditch rights (including stock in utilities with ditch or irrigation rights); and all other rights, royalties, and profits relating to the real property, including without limitation all minerals, oil, gas, geothermal and similar matters (collectively, with the Real Property, the "**Property**") located in Big Sky, Montana and legally described as follows:

See Exhibit A attached hereto and incorporated herein by reference.

THIS MORTGAGE IS GIVEN TO SECURE (A) PAYMENT OF THE INDEBTEDNESS, AND (B) PERFORMANCE OF ANY AND ALL OBLIGATIONS UNDER THE NOTE, THIS MORTGAGE AND ANY OTHER LOAN DOCUMENT. THIS MORTGAGE IS GIVEN AND ACCEPTED ON THE FOLLOWING TERMS:

PAYMENT AND PERFORMANCE. Grantor shall pay to Lender all amounts secured by this Mortgage as they become due and shall perform all of Grantor's obligations under the Loan Documents in accordance with, and subject to, the terms and conditions of the Loan Documents.

CONSTRUCTION MORTGAGE. This Mortgage is a "construction mortgage" for the purposes of Sections 9-334 and 2A-309 of the Uniform Commercial Code, as those sections have been adopted by the State of Montana.

POSSESSION AND MAINTENANCE OF THE PROPERTY. Grantor agrees that Grantor's possession and use of the Property shall be governed by the following provisions:

Possession and Use. So long as an Event of Default does not exist, Grantor may (1) remain in possession

第一顺位产权抵押属性

月光谷俱乐部·西月光谷项目为第一顺位产权抵押，自然属性为任何其他贷款都将低于EB-5贷款的位置，因此若产生其他贷款，都只能是次级贷款或者过桥贷款或其他夹层贷款。

Member, enter into a side letter or similar agreement (each, a “**Side Letter**”) with an Investing Member pursuant to which the Manager may modify the amount of the Expense Amount to be paid by the Investing Member and/or pay such Investing Member a portion of the Manager’s distributions received from the Company; provided, that: (i) such payment does not otherwise adversely affect the rights or benefits of any other Investing Member; and (ii) any such Side Letter shall expressly provide that the Manager’s discretionary right to make such payment shall be non-binding, and shall not be made to return any Investing Member Capital Contributions or otherwise be contrary to USCIS guidelines. The parties hereto agree that any terms contained in a Side Letter shall govern with respect to such Investing Member notwithstanding the provisions of the Operating Agreement or of any Subscription Agreement. Except as required by law, the Manager and the Company shall not be required to deliver the Side Letter or disclose the existence of any Side Letter or the terms and agreements contained therein to any Member other than the Member who is a party to the Side Letter. However, for purposes of clarity, such Side Letters and any compensation described therein shall be fully disclosed to USCIS, in the filing of such pertinent Investing Member’s I-526E Petition, and to the Regional Center as required under the RIA.

Bridge Financing:

To commence predevelopment and construction activities on the Project, the Borrower and/or its affiliates may provide bridge debt or equity financing and may be utilizing an interim financing or a bridge loan until the Loan proceeds become available (“**Bridge Financing**”). The Loan proceeds may be utilized to repay any or all Bridge Financing.

The Borrower may also obtain mezzanine or other debt to fund the Project that is junior to the Loan.

Leverage and Loan Terms:

The Company will be providing financing to the Borrower by making a loan to the Borrower for funding the costs of the development, construction and/or operation of the Project and/or replacing the Bridge Financing. The definitive Loan documents will contain a covenant requiring the Borrower to use its commercially reasonable efforts to complete the Project, provided that the Company is advancing funds to the Borrower for the construction.

- (1) **Loan Amount:** \$150,400,000 (*i.e.*, Target Offering Amount), or up to \$172,000,000 (*i.e.*, the Maximum Offering Amount). The Loan proceeds under the Loan shall be released to the Borrower at such times and in such amounts as requested by the Borrower in accordance with the terms set forth in the proposed loan agreement governing the terms and conditions of the Loan (the “**Loan Agreement**”).
- (2) **Interest Rate:** Interest shall accrue at a rate equal to 6.5% per annum. If any principal or interest of any Loan amount, or any fee or other amount payable by the Borrower, is not paid when due, whether at stated

摘自项目私募备忘录

母公司项目完工担保

COMPLETION GUARANTY

TO: CH MB EB5 Lender LLC ("**Lender**")
c/o CH MB EB5 Manager LLC
One Boston Place, Suite 2300
Boston, Massachusetts 02108
Attention: Justin Bain

Reference is hereby made to that certain Loan Agreement of even date herewith between MB West Owner LLC, a Delaware limited liability company (the "**Borrower**"), and Lender (as amended or modified from time to time, the "**Loan Agreement**"). Capitalized terms used herein but not defined shall have the meanings ascribed thereto in the Loan Agreement.

To induce Lender to make the Loan and to continue to make Advances to Borrower, and in consideration thereof, the undersigned guarantor (the "**Guarantor**") hereby guarantees the following obligations of the Borrower (subject to the conditions set forth below, hereinafter the "**Obligations**"):

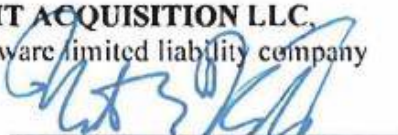
To cause the completion of the construction of the Project in accordance with, and subject to, the terms of the Loan Documents, provided that, so long as Borrower or Guarantor is in compliance with the requirements of Section 4.20 of the Loan Agreement, such obligations shall be conditioned upon Lender and any Bridge Lender(s) continuing to make advances for such construction. For purposes hereof, completion of the Project shall be deemed to have occurred when a certificate of occupancy has been issued for the Project.

母公司为项目建设完工担保。

Executed as of this 10th day of July, 2023.

GUARANTOR:

MB MT ACQUISITION LLC,
a Delaware limited liability company

By: 

Name: Matthew Kidd

Title: Authorized Signatory

摘自 MB West EB-5 Completion Guaranty

EB-5 有限合伙管理人不得自由延期贷款条款（投票条款）

8.3 Limitations on Manager Authority: Notwithstanding anything to the contrary herein contained and subject to the provisions of Section 4, without in each instance receiving the prior written consent of a Majority in Interest of the Investing Members (which, for the avoidance of doubt, may be obtained in accordance with Section 17.7), the Company shall not have the authority to:

(1) lend Company funds to any person other than in connection with the Loan or in the ordinary course of business, except for purposes of maintaining the “at risk” status of the Members in accordance with USCIS guidelines;

(2) perform any act which would make it impossible to carry on the ordinary business of the Company or which would be in contravention of the express terms of this Agreement;

(3) admit a person as an Investing Member other than as provided herein;

(4) extend the term of the Loan beyond such period (including permitted extensions thereof) contemplated under the Loan Agreement as in effect on the date the first Investing Member is admitted to the Company; or

(5) take any action which would result in the Company being classified other than as a partnership for federal income tax purposes.

管理人在投资期（包括允许的延期）之外没有自由延期权。

17.6 Voting Rights. Each Investing Member may take part in the management of the Company by (a) exercising that Investing Member's voting rights as set forth in this Agreement and (b) advising the Manager regarding investment decisions and policy as set forth in this Agreement. Without limiting the generality of the foregoing, the Investing Members will have the right, by a vote of a Majority in Interest of the Investing Members, to advise the Manager in connection with the business operations of the Company.

如果项目方需要延期超过规定的延期权，则需要通过投资人的投票批准。

摘自项目运营协议

EB-5 有限合伙管理人 在贷款返还后必须及时分发给投资人条款

10.6 Distribution of Cash Flow The Manager shall have the sole authority to determine when Cash Flow is available for distribution among the Investing Members. Once a determination is made that such a distribution is in order, the same shall be made as follows subject to the other provisions of this Section 10:

(1) Cash Flow derived from interest payments on the Loan, or from other sources other than repayment of principal on the Loan, shall be distributed 7.7% to the Investing Members, pro rata among the Investing Members, and 92.3% to the Manager; and

(2) Cash Flow derived from repayment of principal on the Loan shall be distributed to the Investing Members, pro rata, as a return of their Capital Contributions until all Capital Contributions have been repaid.

Notwithstanding the foregoing, no distributions under clause (2) above will be made to an Investing Member prior to the fulfillment by such Investing Member of the Sustainment Period. Upon the repayment of any principal on the Loan, with respect to Investing Members who have not satisfied the Sustainment Period, such amount otherwise payable to such Investing Members under clause (2) above shall be redeployed by the Manager, on behalf of the Company, in Alternate Investments for the purpose of preserving such Investing Members' "at risk" investment until such Investing Members have satisfied the Sustainment Period, as more fully set forth in the Offering Memorandum.

The Manager shall endeavor to cause the Company to make distributions to Investing Members on at least an annual basis, and within ninety (90) days after the close of each calendar year. Distributions under clause (1) above that are apportioned to the Manager will be made at such times as the Manager shall determine in its sole discretion, which may be more or less frequently than distributions under clause (1) that are apportioned to the Investing Members.

贷款本金返还到 EB-5 有限合伙公司后产生的现金流，应当做为投资还款，按比例发放给投资成员，直到全部投资款得到返还。

管理人应当努力至少按年来发放这些投资还款，并且在每年结束后的 90 天之内完成。

(上述条款保证了 EB-5 贷款返还到 EB-5 有限合伙公司后，只能并且必须要及时做为投资还款，发放给 EB-5 投资人，不能扣留不发、用做其他用途或其他项目等。)

摘自项目运营协议

在借款方违约情况下贷款人的权利和措施

REMEDIES ON DEFAULT

7.1. **Remedies on Default.** If any Event of Default occurs under Sections 6.8 or 6.9, the obligation of Lender to make further disbursements or to approve further draw requests shall terminate automatically and all Obligations shall immediately become due and payable without any election or action on the part of Lender and Lender shall have the right to exercise any remedy set forth in Sections 7.1. Upon the happening and during the continuance of any Event of Default, Lender shall have the right, in addition to any other rights or remedies available to Lender under the Loan Documents or under applicable Law, to exercise any one or more of the following rights and remedies:

7.1.1. Lender may terminate its obligation to disburse any further principal of the Loan, or otherwise approve any further draw, by Notice to Borrower.

7.1.2. Lender may accelerate all of Borrower's Obligations under the Loan Documents whereupon such Obligations shall become immediately due and payable, without Notice of default, acceleration or intention to accelerate, presentment or demand for payment, protest or Notice of nonpayment or dishonor, or Notices or demands of any kind or character (all of which are hereby waived by Borrower).

7.1.3. Lender may foreclose on the Collateral pursuant to the Loan Documents and/or exercise all available remedies under the Loan Documents as a result of the existence of an Event of Default.

7.1.4. Lender may set off the amounts due Lender under the Loan Documents against all accounts, credits, money, securities or other property of Borrower now or hereafter under the control, maintained in an account, or in the possession of Lender to the credit or for the account of Borrower, without Notice to or the consent of Borrower.

在借款人发生违约事件的情况下，
贷款人可以根据贷款文件对抵押品进行拍卖。

摘自贷款协议

母公司 I-526 被拒或项目被拒还款担保

I-526 DENIAL GUARANTY

TO: CH MB EB5 Lender LLC ("Lender")
c/o CH MB EB5 Manager LLC
One Boston Place, Suite 2300
Boston, Massachusetts 02108
Attention: Justin Bain

Reference is hereby made to that certain Loan Agreement of even date herewith between MB West Owner LLC, a Delaware limited liability company (the "**Borrower**"), and Lender (as amended or modified from time to time, the "**Loan Agreement**"). Capitalized terms used herein but not defined shall have the meanings ascribed thereto in the Loan Agreement.

To induce Lender to make the Loan and to continue to make Advances to Borrower, and in consideration thereof, the undersigned guarantor (the "**Guarantor**") hereby guarantees the following obligations of the Borrower (subject to the conditions set forth below, hereinafter the "**Obligations**"):

- (i) if an EB-5 Investor's I-526 Petition has been denied by USCIS, except in the case of EB-5 Investor fraud, misrepresentation, failure to cooperate with USCIS, abandonment of the I-526 Petition by such EB-5 Investor, or a failure to timely file or reasonably prosecute the I-526 Petition, then, within one hundred eighty (180) days of written notice thereof from Lender to the Borrower and the Guarantor, there shall be returned to Lender the amount of the Loan advanced to the Borrower corresponding to such EB-5 Investor's Capital Contribution in Lender; provided, however, that Lender shall first use reasonable efforts to secure a replacement EB-5 Investor prior to delivery of such notice; or
- (ii) if the EB-5 Offering is terminated because the Project has received a "project denial" by USCIS, then Guarantor shall promptly return to Lender all amounts of the Loan advanced to Borrower.

Executed as of this 10th day of July, 2023.

GUARANTOR:

MB MT ACQUISITION LLC,
a Delaware limited liability company

By: 

Name: Matthew Kidd

Title: Authorized Signatory

如果投资人 I-526 被拒，借款方会在 180 天内将所有已付金额退还给 EB-5 贷款人，借款方的母公司为还款做担保。

如果本项目被拒，借款方会立刻将所有已付金额退还给 EB-5 贷款人，借款方的母公司为还款做担保。

摘自 MB westEB-5 I-526 Denial Guaranty

2023 年 8 月项目实地考察照片





CERTIFICATE OF EXCLUSIVITY

CH MB EB5 LENDER LLC
is pleased to announce and hereby certifies that:

BTM 贝特曼咨询

BTM Consulting Limited

The BTM Consulting Limited migration agency has a track record of upholding the highest standards of professional conduct for EB-5 immigrant investors and their families in the promotion and servicing of EB-5 immigration projects. As such, CH MB EB5 LENDER LLC hereby designates BTM Consulting Limited as its exclusive agent within the People's Republic of China, Hong Kong, Macao, and Taiwan for the promotional and servicing efforts of the rural investment project known as Moonlight Basin West (Form I-956F Receipt No. INF2360004388) under the EB-5 Immigrant Investor Program.

CH MB EB5 Manager LLC, Managing Member

A stylized, handwritten signature in black ink, consisting of several loops and a long horizontal stroke at the end.

SIGNATURE

贝特曼高级法律服务套餐、亿元 RMB 律师服务险

贝特曼高级法律服务套餐

同样费用，全面服务，安心移民

贝特曼亿元 RMB 律师服务险

保单承保总额	1500 万美元
单笔理赔上限	1500 万美元

项目常见问题

1. 贝特曼是项目的独家代理吗？

- 贝特曼是本项目在中国地区的独家代理。

2. 项目具体包括什么？

- 住宅
 - a、28 栋独栋别墅：5-6 间卧室、平均面积 4,500 平方英尺
 - b、8 栋联排别墅：5 间卧室、平均面积 3,375 平方英尺
 - c、46 块定制住宅地块：每块平均面积 1.4 英亩
- 商业
 - a、高尔夫 / 滑雪俱乐部会所：约 30,000 平方英尺，配有专卖店、餐厅、休息室以及高尔夫和滑雪储物柜
 - b、2 个大型高尔夫球场，以及升级的高尔夫练习设施
 - c、2 个滑雪缆车以及多个滑雪道、桥梁、隧道

3. 项目的地址在哪里？

- 66 Mountain Loop Rd, Big Sky, Montana 59716

4. 项目是否有银行贷款？

- 本项目中 EB-5 融资占 41%，其他均为开发商本金。

5. 万一 EB-5 资金没有募集齐怎么办？

- 本项目开发商出资将近 60%，如果 EB-5 资金到位不及时，开发商可使用其他资金。这些资金将在抵押顺位上低于 EB-5 贷款，EB5 贷款不管到位金额多少，均为无条件第一顺位抵押。目前 EB5 募集进展良好，不存在不能及时到位的情况。

6. 月光谷俱乐部项目地产销售情况如何？

- 根据越港资本公布的最新销售数据，2022 年，越港资本在月光谷俱乐部项目的新建项目，共完成 4.1 亿美元的销售额，其中在建项目完成了超过 2.9 亿美元的预售额，远超月光谷俱乐部本期项目的 1.5 亿美元 EB5 贷款额。

7. 疫情期间的销售情况如何？

- 月光谷俱乐部项目的房产价格，在疫情期间翻了一倍，是 2017 的价格的三倍，已经进入每平方英尺 \$2000-\$3000 的区间，最高达到 \$3500 左右，与曼哈顿的豪华公寓、比佛利山庄的豪宅，处于同一价格水平。

8. 工程是否已经开工？工期有多长？

- 2023 年 6 月份开工，工期为 35 个月。

9. 项目将创造多少个就业？

- 本项目预计将创造 4630.7 个就业数，是移民局要求的 2.5 倍。

10. EB-5 贷款期限有多长？从何时开始计算？

- 贷款期将从 2024 年 3 月 1 日开始计算，基础投资期为 3 年，项目方有四个 1 年的延期权。项目方在一、二期项目中，仅使用 3 年贷款期，且从未使用过延期权。

11. 越港资本往期系列完成和还款情况如何？

- 越港资本系列第一、二期已经完工，EB5 贷款已于 3 年内返还至 EB5 有限合伙，部分二投。

12. EB-5 投资期利率多少？

- 本项目中 EB-5 贷款的年利率第 1—4 年为 0.25%，第 5 年为 1.5%。

13. 项目方偿还 EB-5 贷款的机制是什么？

- 项目方会出售项目中的别墅和地块偿还 EB-5 贷款，越港资本也可能使用其他来源的资金来偿还 EB-5 贷款。

14. 如何理解“无条件第一顺位产权抵押”？

- 本项目中的 EB-5 贷款拥有第一顺位抵押权、第一顺位处置权、和第一顺位受偿权。并且，如果 EB-5 到位时间晚于预期，项目方需要其他贷款或其它夹层融资，这些贷款必须在各个方面（包括抵押顺位和还款顺位等）低于 EB-5 贷款，因此，EB-5 是“无条件”第一顺位产权抵押，不需要将第一顺位产权抵押权临时或永久让渡给可能的其他过桥贷款或融资。

15. 项目的抵押物是什么？

- 项目的抵押物为本项目所占土地，以及土地上的物业，包括在建住宅、商业和公共物业。随着项目的不断进展，土地上的不动产的价值会不断增加。

项目常见问题

16. 投资人的权益包括哪些？如何体现在法律文件中？

- 在项目发行文件中，规定的投资人的权益包括：
 - a、延期决定权：管理人在基础投资期和允许的延期权之外，没有自由延期权，如需要继续延期，需要通过投资人的投资批准。至今为止，越港资本在已完成的一、二期 EB5 项目中，从未使用过延期权，包括未使用过发行文件中允许的延期权。
 - b、立即还款义务：EB-5 贷款返还到 EB-5 有限合伙公司后，只能并且必须要及时做为投资还款，发放给 EB-5 投资人，不能扣留不发、用做其他用途或其他项目等。
 - c、第一顺位产权抵押权：月光谷俱乐部·西月光谷项目为第一顺位产权抵押，自然属性为任何其他贷款都将低于 EB-5 贷款的位置，因此若产生其他贷款，都只能是次级贷款或者过桥贷款或其他夹层贷款。

17. 如果 1-526 被拒，会全额退款吗？

- 除欺诈、虚假、与 USCIS 不合作、不及时递交 / 推进 1-526E 申请等特定原因外，如 1-526E 申请被拒，借款方会在 180 天内将所有已付金额（包括全部投资本金和发行费）退还给 EB-5 贷款人，借款方的母公司为还款做担保。

新法 EB5 旗舰型项目 八项安心守护



服务安心

贝特曼 22 年美国律所背景，10 余年来所有 EB5 项目保持“零”失败记录



排期安心

具备“双递交”、“快速绿卡”及“还款优势”三大红利，且移民局优先审理



绿卡安心

共创造 4630 个就业岗位，就业盈余率高达 246%



风控安心

贝特曼第 6 个 EB5 第一顺位产权抵押项目，金融机构级别风控措施，资金结构简单清楚



项目安心

首屈一指的资本开发方，拥有 100+ 美国机构投资者，2008 年至今所有三大俱乐部地产开发项目持续成功



律师安心

贝特曼律所提供全面法律服务（高级法律服务套餐），美国保险公司提供亿元人民币美国律师执业险



资产安心

月光谷俱乐部项目房地产需求强劲 Prospect List 潜在客户名单远多于在建住房数量，与曼哈顿处于同一房价水平



还款安心

2023 年 6 月份开工，35 个月工期，最快 3 年还款，第一、二期 EB5 贷款已于 3 年内返还至 EB5 有限合伙



关注公众号贝特曼咨询

BTM 贝特曼咨询

中国地区服务电话：400-669-0268 北美地区服务电话：888-715-8616

美国总部：299 Broadway, Ste 200 New York, NY, 10007（提供客服和安居服务）

尔湾分部：15625 Alton Parkway, Ste A, Irvine, CA 92618（提供客服和安居服务）

中国总部：北京市朝阳区建国路 77 号华贸中心三号楼 11 层

华东分部：上海市黄浦区淮海中路 8 号兰生大厦 29 层

华南分部：深圳市福田区大百汇广场 19 层 06B 号

西南分部：成都市锦江区二环路东五段华润广场 B 座 12 层